

**CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.**

**Niebaum Coppola Estate Winery, LP et al v.  
George Giles Beeker et al**

**24CV001130**

DEFENDANT AND CROSS-COMPLAINANT KERRI L. BEEKER'S MOTION FOR LEAVE TO FILE SECOND AMENDED CROSS-COMPLAINT NAMING FRANCIS FORD COPPOLA AS A CROSS-DEFENDANT

**TENTATIVE RULING:** The motion is GRANTED. Defendant and Cross-Complainant Kerri L. Beeker is granted 10 calendar days' leave, from entry of the instant order, to file a Second Amended Cross-Complaint in substantially the same form as that attached as Exhibit A to the Declaration William T. Webb filed in support of the instant Motion.

Ms. Beeker moves, pursuant to Code of Civil Procedure section 428.50, subdivision (c) (Section 428.50(c)), for an order granting leave to file Second Amended Cross-Complaint (SACC) naming Francis Ford Coppola as a cross-defendant. Ms. Beeker so moves on grounds that "[t]he claims against Mr. Coppola arise from the same transaction already at issue in this action; the same firm represents him and the entities he is alleged to own and control; there is no prejudice; and there is no bad faith." (Notice of Motion at 2:13-15.)

As discussed in the Court's June 23, 2026 Minute Order granting Cross-Defendant Francis Ford Coppola's Motion To Strike Kerri L. Beeker's First Amended Cross-Complaint, in the procedural circumstances of the instant action, Ms. Beeker is required to obtain leave of Court to file the proposed SACC. (See Section 428.50(c).) "Leave may be granted in the interest of justice at any time during the course of the action." (*Ibid.*)

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a).) Similarly, "[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." (Code Civ. Proc., § 576.)

Typically, a court will exercise its discretion liberally in favor of allowing amendment of the pleadings in order that litigation may be tried on its merits. (See *Kauffman v. Bobo & Wood* (1950) 99 Cal.App.2d 322, 323.)

In opposing the Motion, Plaintiffs and Cross-Defendants do not argue that leave to amend, itself is unwarranted. Rather, they argue that the proposed SACC is fatally flawed in certain regards. Specifically, Plaintiffs and Cross-Defendants contend that the proposed Civil

Code section 3412 claim is futile as Cross-Complainant lacks standing to assert it. (See, *e.g.*, Opposition at 5:21-24.) They further contend that all of the proposed claims against Francis Ford Coppola are barred by the relevant statute(s) of limitations. (See, *e.g.*, *id.* at 12:9, *et seq.*)

While the Court is authorized to deny a motion for leave to file an amended pleading on grounds of futility, in the Court's experience, the better approach is to permit the amendment and address arguments regarding deficiencies therein in the context of demurrers, and/or motions to strike.

Based on the foregoing, the Motion is GRANTED.

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**Saint John's Evangelical Lutheran Church v. Faith Lutheran Church of Napa**

**26CV000538**

PLAINTIFF'S APPLICATION FOR JUDGMENT UNDER CALIFORNIA CODE OF CIVIL PROCEDURE § 764.010

**APPEARANCE REQUIRED.**

Plaintiff St. John's Evangelical Lutheran Church ("Plaintiff") applies, pursuant to Code of Civil Procedure section 764.010,<sup>1</sup> for entry of judgment quieting title to the real property commonly known as 2790 Kilburn Avenue, Napa, California 94558, Napa County Assessor's Parcel No. 004-081-020. Plaintiff so moves on the grounds that Plaintiff has established each and every element of adverse possession under California law.

Pursuant to section 764.010, "[t]he court shall examine into and determine the plaintiff's title against the claims of all the defendants. The court shall not enter judgment by default but shall in all cases require evidence of plaintiff's title and hear such evidence as may be offered respecting the claims of any of the defendants, other than claims the validity of which is admitted by the plaintiff in the complaint. The court shall render judgment in accordance with the evidence and the law."

Plaintiff attempts to establish Plaintiff's title via adverse possession by the Declaration of Thomas F. Carey and Declaration of Michael Schmid. Despite the fact that no opposition has been filed or is expected,<sup>2</sup> and the fact that default was entered against Defendant Faith Lutheran Church of Napa ("Defendant") on June 26, 2026, California courts require an evidentiary prove-up hearing with live testimony and other admissible evidence to determine Plaintiff's title.

"Such a hearing is mandatory: '[A] quiet title judgment requires a hearing in open court. Although section 764.010 does not mandate oral argument—and we do not hold oral argument is necessary, though it may be helpful—the statute requires examining plaintiff's title and hearing defendant's evidence 'in all cases.' ... [¶] The court clearly acts as a fact finder and adjudicates issues when it determines whether to quiet title in the plaintiff.... [T]he statute does not explicitly

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<sup>1</sup> All subsequent statutory references are to the Civil Code unless otherwise noted.

<sup>2</sup> See Mem., 3:1-2 and Carey Decl., ¶ 6.